DEPARTMENT OF HEALTH &. HUMAN SERVICES

Public Health Service

Indian Health Service
Phoenix Indian Medical Center
4212 North 16th Street
Phoenix, Arizona 85016

Legal Statement for OIG Submission

I, Hon. Kevin D. Turnage, MSN Ed., RN, AMB-BC™, NE-BC®, NHDP-BC™, NPD-BC™, serve in the official capacity of Policy and Procedures Officer (PX3147, GS-0610-12) at the Phoenix Indian Medical Center (PIMC), a federal facility within the U.S. Department of Health and Human Services, Indian Health Service.

Per the official position description, I am authorized and required to:
- Provide advisory and consultative services to executive leadership on hospital-wide policy development and deficiencies.
- Identify, analyze, and correct regulatory gaps, outdated clinical protocols, and procedural inconsistencies.
- Maintain compliance with CMS Conditions of Participation, The Joint Commission accreditation standards, OSHA regulations, and IHS policies.

As a federal employee serving in a Moderate Risk Public Trust (MBI Level 5) position, I am legally obligated under **5 CFR § 2635.101** to:
- "Place loyalty to the Constitution, the laws, and ethical principles above private gain," and
- "Disclose waste, fraud, abuse, and corruption to appropriate authorities."

It is therefore my professional and legal obligation to alert leadership, including the Governing Body, to any observed or reported policy failures that endanger patient care, disrupt compliance, or introduce accreditation risk. Refusal by leadership to act on such advisories, or coercion to suppress such advisories, represents a violation of internal control mandates under Federal Acquisition Regulation (FAR) **52.203-13** and may expose the organization to liability under the False Claims Act and the Federal Tort Claims Act.

I submit this sworn statement to affirm my duty and authority to act in defense of safe care, regulatory compliance, and lawful policy governance.

Submitted: April 14, 2025

By: Hon. Kevin D. Turnage, MSN Ed., RN, AMB-BC™, NE-BC®, NHDP-BC™, NPD-BC™

Policy and Procedures Officer
Phoenix Indian Medical Center

Attachment: Position Description Policy and Procedures Officer (PX3147, GS-0610-12)

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POSITION TITLE: Nurse (Consultant)
ORGANIZATIONAL TITLE: Policy and Procedures Officer **PP/SERIES/GRADE:** GS-0610-12
ORG LOCATION: DHHS, IHS, Phoenix Area, Phoenix Service Unit, Phoenix Indian Medical Center, Division of Quality Management, Performance Improvement
FLSA STATUS: Exempt
JOB CODE: PX3147

INTRODUCTION

This position is organizationally located in the Regulatory Compliance and Accreditation Department under the Division of Quality Management at the Phoenix Indian Medical Center (PIMC). This position serves as the Policy and Procedures Officer for hospital wide policies covering inpatient, ambulatory care, emergency and specialty areas. Incumbent serves as an analyst and advisor with the professional knowledge of a registered nurse who provides consultative and advisory services for the development, content, and authentication of the organization's policies and procedures, clinical protocols, and clinical practice guidelines

PIMC is a 129-bed medical center, a hospital based outpatient clinic, and three satellite clinics. Together these facilities serve over 7,600 Native American members of the local Tribal communities surrounding the greater Phoenix metropolitan area. In addition, PIMC serves as a Regional Medical Center and Referral Center that covers a three-state region (Arizona, Nevada, and Utah.) Each Tribal community is a stakeholder in the level of health care being provided.

The medical center provides inpatient and comprehensive ambulatory care, emergency medical, dental, eye care, environmental health, community health nursing, social services, preventive and behavioral health, with emergency care on a 24-hour basis, 7 days a week. PIMC has over 67,000 active clinical users, with over 3000 inpatient admissions/year and over 400,000 outpatient visits/year.

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MAJOR DUTIES AND RESPONSIBILITIES

As the Policy and Procedures Officer, performs the following duties:

Analyzes organizational policies to assure that the content is valid, consistent, and without conflicting content assuring that the procedures describe actual or intended practice.

Stays abreast of changes in the various regulations and standards to develop new policies or revise current policies to ensure that the organization is compliant.

Develops and tracks new policies to meet the changing needs of the

organization. Oversees the coordination of the distribution of all new and

revised policies.

Manages the on-line organizational policies and procedures.

Advises department managers and executive staff on ways to implement new regulations and processes.

Collaborates with management to maintain the various departments' scope of services.

Initiates, coordinates, and facilitates clinical and administrative multidisciplinary teams for the development and implementation of policies and procedures, clinical protocols, and clinical practice guidelines.

Research and advise on best practices to support organizational continual survey readiness

Provide guidance for developing and implementing competencies, internal logs and other forms of documentation that assist with meeting regulatory compliance and accreditation standards

Performs other related duties as assigned.

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FES FACTORS

FACTOR 1 - KNOWLEDGE REQUIRED BY THE POSITON LEVEL 1-7

Professional knowledge and ability to apply a wide range of professional nursing/health care concepts, principles, and practices of advanced nature is required to sufficiently perform studies, advise management and develop policies and procedures, and carry out functions as the Policy and Procedures Officer.

Incumbent must possess and maintain a current, valid, and active state license/registration as a registered professional nurse.

Professional knowledge and expertise of a registered nurse to soundly apply knowledge and skill in a wide range of pertinent health care related regulations, such as the Joint Commission (TJC), Centers for Medicare & Medical Services (CMS), OSHA, Safety codes - State and Federal, clinical care standards and other applicable standards and guidelines for the medical facility. Additionally, detailed knowledge of the Service Unit, Phoenix Area, and IHS policy and procedures is required.

Knowledge in observing activities, processes, and demonstrations and then analyzing the information to develop policies for a complex health care environment.

Knowledge and skill in obtaining, analyzing, and selecting pertinent information, determining the most logical and effective sequence of the policy. Knowledge and skill in articulating complex information clearly, accurately, and thoroughly; apply consistent style, grammar and punctuation practices.

Knowledge and ability to consult with subject clinical and administrative experts to verify policy information.

Knowledge of medical literature search techniques.

Professional knowledge and expertise as a health care provider, performing clinical duties related to the nursing profession.

Broad medical knowledge and technical understanding of disease process, treatment standards of care and the comprehensive process of delivering health care services as described in the scope of TJC standards and chapters.

Knowledge and experience in medical staff organization and function and requirements.

Knowledge and skill in the use of word processing programs and inter and/or intranet.

FACTOR 2 - SUPERVISORY CONTROLS LEVEL2-4

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The supervisor outlines overall objectives and available resources. The employee and supervisor, in consultation, discuss timeframes; scope of the assignment; including possible stages, and possible approaches.

As an expert, the incumbent works independently to plan and complete work assignments. The incumbent determines the most appropriate principles, and methods to apply in all phases of assignments, including the approach to be taken, degree of intensity, and depth of research in management advisories; interprets regulations on his/her own initiative, applies new methods to resolve complex and/or intricate, controversial, or unprecedented issues and problems, and resolves most of the conflicts that arise; and keeps the supervisor informed of progress and of potentially controversial matters.

The supervisor reviews work for soundness of overall approach, effectiveness in meeting requirements or producing expected results, the feasibility of recommendations, and adherence to requirements. The supervisor does not usually review methods used.

FACTOR 3 - GUIDELINES **LEVEL 3-4**

A wide variety of reference materials and manuals, including PSU, PAO, and IHS policies/procedures, standards from The Joint Commission and other regulatory agencies (i.e., OSHA, CMS) are available, but are not completely applicable to the work or have gaps in specificity. Further guidance comes from knowledge of disease processes, health care services processes, and evolving clinical practice standards. The incumbent applies considerable judgement in interpreting, adapting/modifying, researching, choosing, developing, and applying available guidelines for adaptation to specific problems or issues. The employee analyzes results and recommends changes.

FACTOR 4 - COMPLEXITY **LEVEL4-4**

Work consists of a variety of duties requiring the application of many different and unrelated clinical and administrative processes and clinical systems analysis methods to a broad range of Pl activities or to activities or to the in-depth analysis of PI issues. The incumbent makes decisions that involve major uncertainties with regard to the most effective approach or methodology to be applied. These changes typically result from continuing changes in service unit requirements or rapidly evolving technology in the health care industry. The work requires originating new techniques, establishing criteria, or developing new information.

FACTOR 5 - SCOPE AND EFFECT **LEVELS-4**

Independently interfaces with medical, nursing, management, and other staff to provide effective and approach policies and procedures, as necessary, when deficiencies and systems problems, or variation from the standards and processes are found. The work involves establishing criteria; formulating projects; assessing program effectiveness; or investigating or analyzing a variety of unusual conditions, problems, or questions. Activities affect PSU wide activities and are essential for fulfilling mission; achieving quality and safe patient care; TJC compliance; and hospital continual survey readiness.

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FACTOR 6 - PERSONAL CONTACTS **LEVEL6-3**

Contacts are with multidisciplinary (medical staff, nursing staff, executive administration, and non-medical staff of the hospital) and interagency staff (headquarters, the Arizona PRO, CMS, and other agencies and organizations), as appropriate; and other representatives from various regulatory entities outside the agency in a moderately unstructured setting. Contacts are generally made face to face or by telephone and professional conduct is expected.

FACTOR 7 - PURPOSE OF CONTACTS **LEVEL7-C**

Contacts are to plan, coordinate, or advise on PI efforts, or to resolve issues or operating problems by influencing or persuading people who are working toward mutual goals and have basically cooperative attitudes. Contacts typically involve formalizing processes by writing policies and procedures.

FACTOR 8 - PHYSICAL DEMANDS **LEVEL 8-1**

Work is sedentary. Some work may require walking and standing in conjunction with travel and to attendance at meetings and conferences away from the work site. Projects may demands the incumbent to work under stress, to meet short deadlines, or cope with changing priorities and multiple projects and tasks that are varied in nature. The computer work requires long periods of time using keyboard and a computer and CRT.

FACTOR 9- WORK ENVIRONMENT **LEVEL9-1**

Work area is adequately lighted, heated, and ventilated. The work environment involves everyday risks or discomforts that require normal safety precautions.

OTHER SIGNIFICANT FACTORS

The incumbent is required to maintain a current, valid, and state licensure, registration, and/or certification in his or her medical specialty.

Conditions of employment - this position requires, at a minimum, Level 5 - MBI moderate risk level since the contents of the PD meets the Public Trust position criteria.

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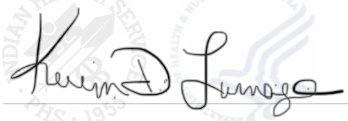
DECLARATION UNDER PENALTY OF PERJURY
Pursuant to 28 U.S.C. § 1746
State of Arizona – County of Maricopa
Date: April 14, 2025

I, **Hon. Kevin D. Turnage, MSN Ed., RN, AMB-BC™, NE-BC®, NHDP-BC™, NPD-BC™**, declare as follows:

1. I am currently employed as the **Policy and Procedures Officer (PX3147, GS-0610-12)** at the **Phoenix Indian Medical Center (PIMC)**, a facility operated by the U.S. Department of Health and Human Services, Indian Health Service.
2. My official duties include providing consultative and regulatory policy oversight to hospital leadership, analyzing deficiencies, and ensuring institutional compliance with CMS, The Joint Commission, OSHA, and IHS standards.
3. I serve in a **Moderate Risk Public Trust (MBI Level 5)** federal position, which binds me to the ethical obligations defined in **5 CFR § 2635.101**, including the duty to:
    - Place loyalty to the Constitution, laws, and ethical principles above private gain;
    - Disclose waste, fraud, abuse, or corruption to the appropriate authorities.
4. In line with these obligations, I am legally and professionally required to notify hospital leadership of policy failures or risks that may compromise patient safety, regulatory compliance, or accreditation.
5. Failure by leadership to address such advisories—or efforts to suppress or retaliate against them—may violate federal regulations including **FAR 52.203-13**, and may result in liability under the **False Claims Act** or the **Federal Tort Claims Act**.
6. This declaration is submitted to affirm my standing, responsibilities, and ethical duty to act in defense of lawful policy governance and patient care integrity.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on April 14, 2025
Phoenix, Arizona



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